WASHINGTON STATE OFFICE OF ADMINISTRATIVE HEARINGS
FOR THE LIQUOR AND CANNABIS BOARD

IN THE MATTER OF: H.I.S CORPORATION dba HERB NIEMANN'S STEAK AND SCHNITZEL HOUSE, LICENSEE. LICENSE NO. 077998 AVN NO. 3A1064A	OAH No. 07-2021-LCB-00986 LCB NO. L-27,583 SETTLEMENT AGREEMENT AND REQUEST FOR RESOLUTION

The Washington State Liquor and Cannabis Board (Board), Enforcement and Education Division (Enforcement), represented by its attorneys ROBERT W. FERGUSON, Attorney General, and PENNY L. ALLEN, Assistant Attorney General, and the Licensee H.I.S. Corporations dba Herb Niemann's Steak and Schnitzel House by and through its attorney, WILLIAM PIERSON, JR into this Settlement Agreement and Request for Resolution regarding Liquor and Cannabis Board Case No. L-27,583. The parties request that the Board approve this agreement and enter a final order on this matter.

I. INTRODUCTION

Enforcement issued Herb Niemman's AVN No. 3A1064A alleging the Licensee violated WAC 314-11-015(3)(c) by allowing over the 25 percent maximum occupancy into the restaurant, by allowing patrons to use the bar top, and by not requiring patrons to wear a mask when not seated at their tables in violation of safety precautions established in the Washington

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State Governor's Proclamations. The alleged violation occurred on or about March 5, 2021. This would have been the Licensee's first violation of WAC 314-11-015(3)(c) and the standard penalty would have been a $500 monetary penalty or a 5-day suspension.

The Licensee appealed the AVN. The Board issued its Final Order affirming the violation on December 7, 2021. Herb Niemann's filed a petition for judicial review in Thurston County Superior Court, and recently, the case was transferred from Thurston County Superior Court to the Court of Appeals, Division 2 pursuant to RCW 34.05.518.

The Licensee has not receive any further AVNs for violating the safety precautions in the Governor's Proclamations.

II. AGREEMENT OF THE PARTIES

Enforcement and the Licensee (the parties) enter into this agreement to avoid the time and expense of further litigation. The parties agree to the following:

1. The Licensee holds a spirits/beer/wine restaurant and lounge license located at 203 W. Main St in Everson, Washington.

2. The Licensee explicitly waives the right to further review of all matters related to AVN No. 3A1064A, and voluntarily withdraws its request for a hearing in this matter.

3. The Licensee agrees that it will continue to operate its licensed premises in a safe manner in the future and will continue to cooperate with LCB investigations in the future.

4. In consideration of the Licensee's agreement not to pursue further review, and its agreements to continue to operate in a safe manner and cooperative with the LCB in the future, Enforcement agrees to convert AVN. No. 3A1064A to a written warning. As a written warning, it will not be considered as violation history and no penalty will be assessed.

5. The Licensee agrees that it will draft and file, upon approval from the Board's attorney, a motion to dismiss its appeal pending in the Court of Appeals, Division 2 within ten days of the date of the final order.

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6. The undersigned parties declare that the terms of this Settlement Agreement are completely read, wholly understood, and voluntarily accepted for the purpose of making a full and final compromise and settlement of any and all claims arising from AVN No. 3A1064A, its investigation, and subsequent litigation. Each party has had the opportunity to discuss this settlement with an attorney of its choosing and at its own cost.

7. This agreement consists of four pages, and sets forth in full all the terms and conditions agreed upon and stipulated to by the parties. There are not any other agreements, representations, promises or stipulations, verbal or otherwise, not contained in this written stipulation settlement agreement regarding the subject matter of this agreement.

8. Each individual signing this Settlement Agreement directly and expressly warrants that they has been given and has received and accepted authority to sign and execute the documents on behalf of the Party for whom it is indicated he/she has signed, and further has been expressly given and received and accepted authority to enter into a binding agreement on behalf of such Party with respect to the matters concerned herein and as stated herein. A signature transmitted by facsimile or as a pdf copy to electronic mail shall be treated as original for all purposes.

9. The Licensee, its true parties of interest, its principals, their assigns or other successors in interest, agree to release and forever discharge the Board and the State of Washington and their officers, agents, employees, agencies and departments from any and all existing and future claims, damages, and causes of action of any nature whatsoever arising out of the matters covered by this agreement, including all known or unknown damages.

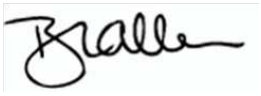
10. The parties recognize that this settlement agreement is subject to approval by the Board. The Licensee understands and agrees that counsel for Enforcement and Board staff may communicate directly and confidentially with the Board regarding this proposed Stipulated Settlement Agreement, without notice to or participation by the Licensee or its counsel. Licensee further understands and agrees that any such communication is confidential and protected by

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attorney-client privilege, and is not discoverable through litigation discovery or a request for public records. The Licensee understands and agrees that if the Board does not adopt this Settlement Agreement as its Final Order, this agreement shall be of no force or effect and, except for this paragraph, shall be inadmissible in any legal action between the parties. Licensee understands and agrees that neither the Board nor the assigned Assistant Attorney General shall be disqualified from further action in this case by having communicated with each other or by the Board's consideration of the proposed agreement.

STIPULATED AND AGREED TO BY:

ROBERT W. FERGUSON
Attorney General



PENNY ALLEN, WSBA #18821
Assistant Attorney General
Attorneys for Washington State
Liquor and Cannabis Board Enforcement
and Education Division

August 31, 2022
DATE



WILLIAM PIERSON, JR., WSBA#13619
Attorney for H.I.S. CORPORTATION dba
Herb Niemann's Steak and
Schnitzel House

August 31, 2022
DATE

BEFORE THE WASHINGTON STATE LIQUOR AND CANNABIS BOARD

IN THE MATTER OF: H.I.S CORPORATION dba HERB NIEMANN'S STEAK AND SCHNITZEL HOUSE, LICENSEE. LICENSE NO. 077998 AVN NO. 3A1064A	LCB NO. L-27,583 FINAL ORDER OF THE BOARD ~~[PROPOSED]~~

THIS MATTER having come before the Washington State Liquor and Cannabis Board (Board), on a Settlement Agreement and Request for Resolution submitted by the Washington State Liquor and Cannabis Board Enforcement and Education Division (Enforcement), represented by its attorneys ROBERT W. FERGUSON, Attorney General, and PENNY L. ALLEN, Assistant Attorney General, the Licensee H.I.S. Corporations dba Herb Niemann's Steak and Schnitzel House by and through its attorney, WILLIAM PIERSON, JR. The Board having considered the Settlement Agreement and Request for Resolution and Enforcement's memorandum(s) recommending acceptance of the Settlement Agreement, and the Board having had the opportunity to review the file materials maintained in this case, now therefore:

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IT IS HEREBY ORDERED that the SETTLEMENT AGREEMENT in the above-captioned case is adopted in its entirety, and that AVN No. 3A1064A will be converted to a written warning.

DATED this 6th day of September, 2022.

WASHINGTON STATE LIQUOR AND CANNABIS BOARD

ATTORNEY GENERAL OF WASHINGTON
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Washington State
Liquor and Cannabis Board

September 6, 2022

William E. Pierson, Jr.
Attorney for Licensee
Law Offices of William E. Pierson, Jr. PC
The Delmar Building
108 S. Washington St, Ste 202
Seattle, WA 98104

Penny L. Allen, Sr. AAG
GCE Division, Office of Attorney General
Pennyl.allen@atg.wa.gov

RE: FINAL ORDER OF THE BOARD
Licensee: H.I.S. Coporation
Trade Name: Herb Niemann's Steak and Schnitzel House
License No. 077998
LCB Hearing No. L-27,583
AVN No. 3A1064A
OAH No. 07-2021-LCB-00986
UBI No. 602 017 453 001 0001

Dear Parties:

Please find the enclosed Final Order of the Board and Declaration of Service by Mail in the above-referenced matter, as well as a copy of the Stipulated Settlement Agreement. If you have any questions, please call 360-664-1709.

Sincerely,

Tinaya Smith

Tinaya Smith
Adjudicative Proceedings Program Coordinator

Enclosures (3)
CC:

Deputy Director Hood, WSLCB Director Office
Director Brady, WSLCB Enforcement
Deputy Chief Rupke, WSLCB Enforcement
Captain Dixon, WSLCB Enforcement
Lieutenant Lucatero, WSLCB Enforcement
Officer Brulotte, WSLCB Enforcement
Patrick McMillen, WSLCB Enforcement
Sherri Docekal, WSLCB Enforcement
Emilee Ragsac, WSLCB Enforcement
Andrea Lee, WSLCB Enforcement

WASHINGTON STATE LIQUOR AND CANNABIS BOARD

IN THE MATTER OF: H.I.S. CORPORATION d/b/a HERB NIEMANN'S STEAK AND SCHNITZEL HOUSE PO BOX 238 EVERSON, WA 98247-0238 LICENSEE LICENSE NO. 077998 AVN NO. 3A1064A UBI NO. 602 017 453 001 0001	LCB NO. L-27,583 OAH NO. 07-2021-LCB-00986 DECLARATION OF SERVICE BY MAIL

I certify that I caused a copy of the FINAL ORDER OF THE BOARD in the above-referenced matter to be served on all parties or their counsel of record by US Mail Postage Prepaid via Consolidated Mail Service for applicants and licensees and by electronic mail for WSLCB offices and state offices on the date below to:

WILLIAM E. PIERSON, JR. ATTORNEY FOR LICENSEE LAW OFFICES OF WILLIAM E. PIERSON, JR. PC THE DELMAR BUILDING 108 S. WASHINGTON ST, STE 202 SEATTLE, WA 98104	OFFICE OF THE ATTORNEY GENERAL PENNY L. ALLEN SR. ASSISTANT ATTORNEY GENERAL PENNYL.ALLEN@ATG.WA.GOV
H.I.S. CORPORATION d/b/a HERB NIEMANN'S STEAK AND SCHNITZEL HOUSE PO BOX 238 EVERSON, WA 98247-0238	

DATED this 6th day of September, 2022, at Olympia, Washington.

Tinaya Smith

Tinaya Smith, Adjudicative Proceedings Program Coordinator